



LAND LAWS

UNIT IV — LAND CEILINGS, IX SCHEDULE & FOREST RIGHTS

Osmania University | LLB (3-YDC) | 4th Semester | Paper IV

Comprehensive Exam Preparation Notes · Target: 75+ Marks

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UNIT IV — OVERVIEW & STUDY MAP

✓ What IS in this Unit (Scope)

- Telangana Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 — ceiling limits, Standard Holding, surplus land
- Constitutional protections: Effect of IX Schedule inclusion on land reform laws
- Directive Principles — Articles 38 and 39 — land distribution mandate
- Survey Laws — land surveys and sub-division of land holdings
- Forest Rights: Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006
- 75-year residence rule for forest rights claims
- Individual and community forest rights — scope, procedure, Gram Sabha role

✗ What is NOT in this Unit

- LARR 2013 acquisition procedure — Unit III
- Zamindari/Ryotwari/Mahalwari settlements — Unit II
- Assigned Lands (Prohibition of Transfers) Act 1977 — Unit V
- Scheduled Areas Land Transfer Regulation — Unit V
- Pattadar Pass Books / Dharani — Unit I

★ Predicted High-Probability Questions — 2026 Exam

- Part A: Social Impact Assessment — Unit III overlap but also mentioned with ceiling context
- Part A: Effect of Schedule IX — appeared 2024 (near-certain for 2026)
- Part A: Land rights of forest dwellers — appeared 2024
- Part A: Standard Holding — appeared 2025 (defined in Unit II but used in ceiling — belongs here)
- Part B: Laws relating to Ceiling on Land Holdings — appeared 2025, 2022, 2019, 2018 (EVERY major year)
- Part B: Salient features of Urban Land Ceiling Act 1973 — appeared 2021
- Part B: Constitutional provisions / IX Schedule challenge — appeared 2022, 2021, 2020, 2019, 2018 (Part C every year)
- Part B: Interpretation of DPSP Arts 38 & 39 in land distribution
- Part C: IX Schedule law validity challenge (appeared in 2020, 2019, 2018 — almost certain)
- Part C: Forest Rights Act — 75-year period calculation (appeared 2024)
- Part C: Transfer of forest land — laws involved (appeared 2024)

Critical Numbers & Provisions — Unit IV

- AP Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 (Telangana Ceiling Act)
- 1 Standard Holding (SH) = 54 acres of dry unirrigated land (Class IV) = ceiling for 1 family
- Conversion: 54 acres dry = 27 acres single-crop = 13.5 acres double-crop = 10.8 acres garden/perennial
- Additional allowance: 1/5 SH per minor child (max 5 children) = up to 1.5 SH ceiling for large family
- Surplus = holding above ceiling — must surrender to government

- Urban Land (Ceiling and Regulation) Act 1976 (ULCRA) — ceiling on urban land; REPEALED in 2007 nationally (TN, Kerala, UP retain)
- Forest Rights Act 2006 — full name: Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006
- 13 December 2005 — cut-off date: forest dweller must have occupied/cultivated forest land on or before this date
- 3 generations / 75 years — period required to establish 'traditional forest dweller' status
- Maximum 4 hectares of forest land per nuclear family for individual forest rights
- Gram Sabha — primary authority to receive, consolidate, verify and approve forest rights claims
- Article 38 — State to minimise inequality; Article 39(b)(c) — distribute material resources for common good
- Kesavananda Bharati (1973) — basic structure doctrine; Waman Rao (1981) — post-1973 IX Schedule laws challengeable
- IR Coelho (2007) — reaffirmed Waman Rao; SC can review post-1973 IX Schedule laws on basic structure



PART A — SHORT NOTES (6 Marks Each)

~200–250 words. Definition → Key Points → Example → Case → TIP.

A-1. Effect of Schedule IX of the Constitution

Exam Frequency: ★★★★★ (VERY HIGH)

DEFINITION

The Ninth Schedule of the Constitution of India is a special list of laws appended to the Constitution by the First Amendment Act, 1951. Laws placed in this Schedule are, in principle, protected from challenge on grounds of violation of Fundamental Rights — giving them constitutional immunity from judicial review on Part III grounds.

KEY POINTS

- Inserted by First Constitutional Amendment Act, 1951 — to protect Zamindari Abolition Acts from FR challenges
- Article 31-B: No law in IX Schedule shall be void on grounds of inconsistency with any Fundamental Right
- Currently contains 284 laws — mainly land reform, ceiling, and tenancy laws
- Purpose: Allow States to carry out land reforms without landlords defeating them through court challenges citing property rights
- ABSOLUTE PROTECTION: Laws inserted BEFORE 24 April 1973 (date of Kesavananda Bharati judgment) — completely immune from FR challenge
- QUALIFIED PROTECTION: Laws inserted AFTER 24 April 1973 — can be challenged if they violate the BASIC STRUCTURE of the Constitution (Waman Rao 1981; IR Coelho 2007)
- Courts CANNOT strike down pre-1973 IX Schedule laws on FR grounds — not even Art 14 (equality) or Art 21 (life)
- Post-1973 laws: SC can examine whether the law abrogates or abridges fundamental rights forming part of basic structure
- No land reform ceiling law has yet been struck down on basic structure grounds

📌 **Example:** The Telangana Land Reforms (Ceiling on Agricultural Holdings) Act 1973 is included in the IX Schedule. A landowner cannot challenge it by saying it violates his right to property (Art 300-A) or equality (Art 14).

🏛️ **Case:** Waman Rao v. Union of India (1981) SC — IX Schedule laws inserted after 24 April 1973 can be reviewed for basic structure violations. IR Coelho v. State of TN (2007) SC (9-judge bench) — reaffirmed and elaborated Waman Rao; post-1973 laws reviewed if they damage or destroy basic structure rights.

💡 **TIP:** IX Schedule Rule: Pre-1973 = ABSOLUTE shield. Post-1973 = Can challenge on BASIC STRUCTURE only. The magic date is 24 April 1973 (Kesavananda Bharati). In exams — if asked 'can IX Schedule law be challenged?' → YES, if inserted after 24 April 1973 AND violates basic structure.

A-2. Land Rights of Forest Dwellers (Forest Rights Act, 2006)

Exam Frequency: ★★★★★ (VERY HIGH)

DEFINITION

The Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006 (Forest Rights Act / FRA 2006) recognises and vests the forest rights and occupation of forest land in forest dwelling Scheduled Tribes (FDSTs) and Other Traditional Forest Dwellers (OTFDs) who have been residing in forests for generations but whose rights were not recorded.

KEY POINTS

- Purpose: Undo the historical injustice done to forest-dwelling communities — their rights were ignored when forests were nationalised under Indian Forest Act 1927 and Wildlife Protection Act 1972
- Who qualifies: (a) Forest Dwelling Scheduled Tribes (FDST) — member of ST notified for that area; (b) Other Traditional Forest Dwellers (OTFD) — 3 generations (75 years) of dependence on forest land
- Cut-off date: Must have been occupying/cultivating forest land on or BEFORE 13 December 2005
- Individual forest rights (IFR): Right to hold and live on forest land up to a maximum of 4 hectares (this is individual family limit — not a ceiling to be surrendered)
- Community forest rights (CFR): Rights over community forest resources — minor forest produce (MFP), grazing, fish, water bodies, etc.
- Gram Sabha: Primary authority — receives claims, verifies, passes resolutions recommending titles
- Sub-Divisional Level Committee (SDLC) → District Level Committee (DLC) → State Level Monitoring Committee: appeals hierarchy
- Forest rights title is inalienable — cannot be sold, transferred, or mortgaged
- Right to protect forest: Gram Sabha has power to protect, regenerate, conserve, manage forests

📌 **Example:** A Gond tribal family in Adilabad has been cultivating 2.5 acres of forest land since their grandfather's time (before 1930). Under FRA 2006, they can file a claim with the Gram Sabha and receive a forest rights title for those 2.5 acres.

🏛️ **Case:** Wildlife First v. Ministry of Forest (2019) SC — eviction of forest dwellers whose claims were rejected; later modified on rehearing. Gram Sabha has crucial role — their verification is foundational. Orissa Mining Corp v. MoEF (2013) SC — Gram Sabha consent essential before any diversion of forest land in Scheduled Areas.

💡 **TIP:** FRA 2006 Key Numbers: 4 hectares max individual, 13 Dec 2005 cut-off, 3 generations (75 years) for OTFD. Gram Sabha = first authority. Title = inalienable. FDST = ST member; OTFD = 75 years dependence.

A-3. Ceiling on Agricultural Land Holdings

Exam Frequency: ★★★★★ (VERY HIGH)

DEFINITION

Ceiling on agricultural land holdings refers to the legal maximum limit on the amount of agricultural land that an individual or family can own. Land held in excess of this ceiling is called 'surplus land' and must be surrendered to the State government for redistribution to landless agricultural labourers and weaker sections.

KEY POINTS

- Governed by: AP Land Reforms (Ceiling on Agricultural Holdings) Act, 1973 (applicable to Telangana)
- Unit of ceiling: 1 Standard Holding (SH) per family
- 1 SH = 54 acres of dry (Class IV) land; equivalent areas for better-quality land
- Family unit: individual + spouse + minor children. Each minor child = additional 1/5 SH allowance (maximum 5 children = 1 SH extra)
- Maximum possible ceiling (for large family with 5+ minor children) = 1 SH + 1 SH = 2 SH = 108 acres of dry land
- Surplus land = holding above applicable ceiling — declared ceiling surplus
- Ceiling surplus land vests in State government upon the appointed day
- Surplus land redistributed: landless agricultural labourers, SCs, STs, small farmers — 1 to 2 acres per family
- Constitutional protection: Act listed in IX Schedule — immune from FR challenge
- Benami transactions to evade ceiling are void — Section 5 of the Act
- Exemptions: land held by educational institutions, temples, registered co-operative societies, government

 **Example:** Farmer Raju owns 80 acres of dry land. His family = himself + wife + 3 minor children. Ceiling = 1 SH (54 acres) + 3 × 1/5 SH (3 × 10.8 = 32.4 acres) = 86.4 acres. Raju's 80 acres < 86.4 acres ceiling — NO surplus. No land to surrender.

 **Case:** State of AP v. Nookala Krishnamurthy (1993) — ceiling calculations strictly applied; land classification manipulation to avoid ceiling is invalid. Gopal Narain v. State of UP (1964) SC — ceiling laws are valid social legislation. State of AP v. Raja Reddy (1982) — family unit for ceiling strictly construed.

 **TIP:** Ceiling formula: Base = 1 SH. Add 1/5 SH per minor child (max 5 children). Ceiling can never exceed 2 SH for any family. Convert ALL land to SH equivalents before comparing to ceiling. Remember: 54D = 27S = 13.5D/C = 10.8G.

A-4. Directive Principles — Articles 38 & 39 and Land Reforms

Exam Frequency: ★★★★★ (HIGH)

DEFINITION

Articles 38 and 39 of the Constitution contain Directive Principles of State Policy (DPSP) that provide the normative mandate for land reform legislation. They direct the State to achieve socio-economic justice by minimising inequalities and ensuring equitable distribution of material resources — including land.

KEY POINTS

- DPSPs are not enforceable in court (Art 37) but are fundamental in governance — State must apply them in making laws
- Article 38: State shall strive to promote welfare of people by securing and protecting a social order in which justice — social, economic, political — informs all institutions. Also directs minimisation of inequalities in income, status, facilities, and opportunities
- Article 39(b): Ownership and control of material resources of the community are distributed to serve the common good — this is the land reform mandate
- Article 39(c): The economic system does not result in concentration of wealth and means of production to the common detriment — anti-monopoly, anti-concentration principle
- Article 31-C (inserted by 25th Amendment 1971): Laws made to implement Art 39(b) and (c) cannot be challenged under Arts 14 and 19 — direct constitutional protection for anti-concentration legislation
- Ceiling laws, abolition of zamindaris, tenancy reforms — all derive their normative basis from Art 39(b)(c)
- State of Karnataka v. Ranganatha Reddy (1977) — Art 31-C partially upheld; laws implementing Art 39(b)(c) protected
- Minerva Mills v. UOI (1980) — Art 31-C cannot be so broad as to exclude all judicial review; balance needed between FRs and DPSPs

 **Example:** The Telangana Ceiling Act 1973, which takes surplus land from large landowners and distributes it to landless poor, is a direct implementation of Article 39(b) — ensuring that material resources (land) are distributed to serve the common good.

 **Case:** Kesavananda Bharati v. State of Kerala (1973) — fundamental rights and DPSPs must be read harmoniously; neither can completely override the other. Minerva Mills v. UOI (1980) — harmony between FRs (Arts 14, 19) and DPSPs is itself part of basic structure. Sanjeev Coke Mfg v. Bharat Coking Coal (1983) — Art 39(b)(c) laws immune from Art 19 challenge.

 **TIP:** Art 38 = welfare state, minimise inequality. Art 39(b) = distribute land/resources for common good. Art 39(c) = prevent concentration of wealth. Art 31-C = these laws protected from Art 14 & 19. All three together = constitutional basis for ALL land ceiling laws.

A-5. Survey Laws — Land Survey and Sub-Division

Exam Frequency: ★★☆☆ (MEDIUM)

DEFINITION

Survey laws are the body of legislation and rules governing the measurement, demarcation, mapping, classification, and sub-division of land parcels for revenue, ownership, and planning purposes. In Telangana, land surveys are governed primarily by the Telangana Land Revenue Act and the Survey and Boundaries Act.

KEY POINTS

- Primary legislation: Telangana Land Revenue Act; Survey and Boundaries Act; Survey Settlement and Land Records Act
- Survey = official measurement and demarcation of land parcels, fixing boundaries, and preparation of field maps (Pahani maps / survey settlement records)
- Survey Number (S.No.) = the basic unit of land identification in the revenue record system
- Types of survey: (a) Cadastral survey — detailed survey of individual plots; (b) Topographic survey — terrain features; (c) Settlement survey — done during revenue settlement
- Survey Settlement: periodic re-survey to update land records, revise boundaries, reassess land revenue
- Sub-division of land: when a survey number is divided (on sale, partition, inheritance) into smaller sub-divisions called 'sub-survey numbers' or 'field numbers'
- Boundary disputes: adjudicated by MRO/RDO under Survey Act; final appeal to Board of Revenue
- Unauthorised sub-division (without revenue mutation) is not recognised in land records
- DGPS (Differential Global Positioning System) and Total Station surveys now used in Telangana for accurate demarcation
- Dharani portal integrates survey data with registration — reduces boundary fraud

 **Example:** Survey Number 123/A in village Pochampally is a 5-acre plot. When the owner sells 2 acres to his neighbour, a sub-division survey creates S.No. 123/A/1 (2 acres) and 123/A/2 (3 acres) — each separately recorded in the Pahani.

 **Case:** Hari Vishnu Kamath v. Ahmad Ishaque (1955) SC — boundaries fixed by survey officer are conclusive unless challenged through proper proceedings. Revenue courts have jurisdiction over boundary disputes under the Survey Act.

 **TIP:** Survey: S.No. = identity of land parcel. Sub-division = S.No. splits into sub-numbers. Boundary dispute = Revenue Court (MRO/RDO). Remember: Survey records are PRIMA FACIE evidence of boundaries — not conclusive for title.

A-6. Resumption of Lands to Transferor

Exam Frequency: ★★☆☆ (MEDIUM)

DEFINITION

Resumption of lands refers to the legal process by which land that was illegally or improperly transferred in violation of protective legislation (particularly assigned lands or Scheduled Area lands) is resumed (taken back) from the transferee and restored either to the original transferor or to the government.

KEY POINTS

- Most relevant under: Telangana Assigned Lands (Prohibition of Transfers) Act, 1977
- Under the 1977 Act: assigned land cannot be transferred, alienated, or encumbered. Any transfer is void.
- On illegal transfer being detected: the Collector/RDO initiates resumption proceedings
- Resumption = land is taken back from the illegal transferee
- After resumption, land may be: (a) restored to original assignee if still eligible; OR (b) re-assigned to another eligible landless poor person
- Also applicable under SALTR 1959 (Scheduled Area Land Transfer Regulation) — tribal land illegally transferred to non-tribal is resumed and restored to the tribal
- Burden of proof: transferee must prove the transfer was legal; if unable, resumption follows
- No limitation period generally applicable to resumption of void transfers
- Revenue Divisional Officer (RDO) has jurisdiction to order resumption

 **Example:** Government assigned 2 acres to Rami, a landless agricultural labourer, in 2005. Rami sold it to a real estate developer in 2010. The RDO discovers this, initiates resumption proceedings, declares the sale void, and restores the land to Rami (or re-assigns it to another eligible person).

 **Case:** Government of AP v. Thota Venkateswarlu (1995) AP HC — assigned land cannot be transferred; resumption valid. State of AP v. Mohd. Hussain (2003) — resumption order passed without hearing is violative of natural justice.

 **TIP:** RESUMPTION = land is RESUMED (taken back) from illegal transferee. Occurs mainly under: (1) Assigned Lands Act 1977; (2) SALTR 1959 (tribal land). The key: illegal transfer = VOID → resumption follows → land restored to original or re-assigned.



PART B — LONG ESSAYS (15 Marks Each)

600–800 words per essay. Introduction → Headings → Conclusion.

B-1. Laws Relating to Ceiling on Land Holdings — Telangana Ceiling Act 1973

Exam Frequency: ★★★★★ (VERY HIGH)

(Appeared in 2025, 2022, 2019, 2018 — among the most repeated Part B questions)

I. Introduction

Ceiling on land holdings is one of the three pillars of post-independence land reform in India, alongside abolition of intermediaries and tenancy reform. The policy of imposing a maximum limit on land ownership seeks to break the concentration of agricultural land in the hands of a few, redistribute surplus land to the landless poor, and give practical effect to the constitutional directive in Articles 39(b) and 39(c) — that the ownership and control of material resources of the community should be so distributed as to serve the common good.

II. Legislative Framework

A. Central Guidance — 1972 Policy

In 1972, the Central Government issued revised guidelines for State Ceiling Acts requiring: (a) low ceiling limits; (b) exemption only for genuine co-operative farms; (c) removal of family exemptions above a reasonable level; (d) quick implementation. In response, AP enacted the Land Reforms (Ceiling on Agricultural Holdings) Act, 1973.

B. AP/Telangana Land Reforms (Ceiling on Agricultural Holdings) Act, 1973

This Act, applicable to Telangana, is the primary ceiling legislation. It came into force on 1 January 1975 (the appointed day).

III. Standard Holding and Ceiling Limits

The concept of Standard Holding (SH) is the key measurement unit. One Standard Holding represents the maximum permissible holding for one family.

Land Category	Dry (Class IV)	Single-crop (Class III)	Double-crop (Class II)	Garden / Perennial (Class I)
1 Standard Holding (SH) equivalent	54 acres	27 acres	13.5 acres	10.8 acres
Family Ceiling (= 1 SH)	54 acres	27 acres	13.5 acres	10.8 acres
With minor children (+1/5 SH each, max 5)	Up to 81 acres	Up to 40.5 acres	Up to 20.25 acres	Up to 16.2 acres

CEILING FORMULA: Family ceiling = 1 SH + (1/5 SH × number of minor children, max 5).
Maximum ceiling = 2 SH for a family with 5+ minor children.

IV. Family Unit for Ceiling Purposes

- Family = individual + spouse + minor children (below 18 years)
- Unmarried major sons/daughters are NOT part of family unit — they have separate ceiling
- Minor children: each adds 1/5 SH to the ceiling (maximum allowance for 5 minor children = 1 SH extra)
- On the appointed day (1 Jan 1975): ceiling determined for each family as constituted on that date
- Post-appointed day transfers to evade ceiling are void

V. Exemptions from Ceiling

- Land held by educational, medical, or charitable institutions (not for profit)
- Land held by temples and religious/charitable endowments
- Land held by registered co-operative farming societies (subject to conditions)
- Government land, public sector undertakings
- Industrial/commercial land (not agricultural) — but care taken to prevent agricultural land being misclassified

VI. Determination of Surplus Land

- All land held by family members (including benami holdings) is aggregated
- Converted to Standard Holding equivalents based on classification
- If total SH equivalent exceeds the applicable ceiling → surplus arises
- Declaration of surplus: family files a statement; Ceiling Authority determines surplus
- Surplus land vests in government on the appointed day
- Government redistributes to landless agricultural labourers, SCs, STs — 1 to 2 acres per beneficiary

VII. Anti-Evasion Provisions

- Benami transactions to evade ceiling are void — Section 5
- Transfers made after 24 January 1971 (the 'notional date') to evade ceiling are void
- Ceiling Authority can set aside such transfers and add land back to holding for ceiling calculation
- Registration of benami transfers does not make them valid

VIII. Constitutional Validity

The Telangana Ceiling Act 1973 is listed in the Ninth Schedule of the Constitution. By virtue of Article 31-B, it cannot be challenged on grounds of violation of any Fundamental Right. Even though Article 19(1)(f) (right to property) was deleted by the 44th Amendment 1978, the IX Schedule protection further ensures that the Act cannot be challenged on Art 14 or Art 300-A grounds.

🔗 **Case:** State of AP v. Nookala Krishnamurthy (1993) AP SC — ceiling strictly applied; classification manipulation invalid. Gopal Narain v. State of UP (1964) — ceiling laws valid social legislation. State of AP v. Raja Reddy (1982) — family unit strictly construed. Maharaja Chintamani Saran Nath Shahdeo v. State of Bihar (1999) — court has limited review of ceiling determinations.

IX. Urban Land Ceiling Act (Brief)

The Urban Land (Ceiling and Regulation) Act, 1976 (ULCRA) imposed ceiling on urban land holdings. However, it was repealed at the national level by the Urban Land (Ceiling and Regulation) Repeal Act, 1999. Telangana (as successor to AP) adopted the repeal — ULCRA is no longer in force in Telangana. However, it may still be asked in exams as historical context — know that it existed (ceiling for vacant urban land) and was repealed nationally in 1999 (though some states like TN, Kerala, UP retained it).

X. Conclusion

The ceiling legislation in Telangana, while far from perfectly implemented due to benami holdings and classification fraud, represents a constitutionally mandated effort to redistribute the most fundamental resource — land — from the few to the many. It gives concrete form to the Directive Principles in Articles 38, 39(b), and 39(c). The IX Schedule protection ensures its judicial immunity from property rights challenges. The challenge remains effective implementation and preventing evasion through Benami transactions and misclassification of agricultural land as industrial or commercial.

B-2. Land Rights under the Forest Rights Act, 2006

Exam Frequency: ★★★★★ (VERY HIGH)

(Appeared in Part A and Part C 2024 — likely full essay in 2026)

I. Introduction

The Scheduled Tribes and Other Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006 (Forest Rights Act / FRA 2006) is one of the most significant pieces of social legislation enacted in post-independence India. It seeks to correct a historical injustice — the systematic denial and dispossession of forest rights of tribal communities whose occupation and use of forest land was rendered illegal or unrecognised when forests were brought under State control through the Indian Forest Act, 1927 and subsequent legislation.

II. Historical Background — The 'Historical Injustice'

- Pre-colonial period: tribal communities lived in and depended on forests for centuries — this was their customary land
- Colonial period: Indian Forest Act 1927 — forests nationalised; tribal use criminalised without recording rights
- Post-independence: Wildlife Protection Act 1972, Forest Conservation Act 1980 — further restricted tribal access
- Result: Millions of tribal families became 'encroachers' on land they had lived on for generations
- FRA 2006 — enacted after decades of tribal movement and parliamentary debate — to recognise and record what always existed

III. Who Can Claim Forest Rights?

A. Forest Dwelling Scheduled Tribes (FDST)

Any member of a Scheduled Tribe primarily residing in and dependent on forests for bonafide livelihood needs — who is notified as Scheduled Tribe for that area under the Constitution (Art 342).

B. Other Traditional Forest Dwellers (OTFD)

Any member of a community who has lived in and depended on forests for at least 3 generations (75 years) prior to the cut-off date, for bona fide livelihood needs. The 75-year period does not require continuous unbroken residence in a single location.

CUT-OFF DATE: 13 December 2005 — the claimant (or ancestors) must have been occupying/cultivating forest land on or before this date.

IV. Types of Forest Rights Recognised

Right Type	Who Holds It	Key Limits
Individual Forest Rights	Individual tribals / OTFDs	Max 4 hectares; land actually cultivated before 13 Dec 2005
Community Forest Rights	Village / Gram Sabha	Ownership of minor forest produce; manage community forest resources
Right of Habitat	Particularly Vulnerable Tribal Groups (PVTGs)	Right to use habitat for livelihood
Developmental Rights	Village communities	Right to use land for developmental purposes — schools, roads, etc.
Right to Protect	Gram Sabha	Power to protect, conserve, manage forest resources in village

V. Individual Forest Rights — Key Limits

- Maximum area: 4 hectares per nuclear family — this is NOT a ceiling to be surrendered; it is the maximum that can be recognised/titled
- The 4-hectare limit applies per nuclear family — extended family members can get separate titles
- Land must be the land actually occupied/cultivated on or before 13 December 2005
- The title is inalienable — cannot be sold, mortgaged, gifted, or transferred
- However, the title holder's family members can continue cultivation on the land after his/her death

VI. Procedure for Claiming Forest Rights

- Step 1: Claim filed with Gram Sabha (village assembly) — the PRIMARY authority
- Step 2: Gram Sabha verifies claim — village level survey, community verification
- Step 3: Gram Sabha passes resolution recommending claim
- Step 4: Sub-Divisional Level Committee (SDLC) — reviews, approves or rejects
- Step 5: District Level Committee (DLC) — hears appeals; final authority for individual claims
- Step 6: State Level Monitoring Committee — overall oversight
- Gram Sabha resolution is CRITICAL — claims cannot proceed without it
- If claim rejected at SDLC — appeal to DLC. If rejected at DLC — representation to SLMC only (no regular court jurisdiction for initial rejection)

VII. Diversion of Forest Land — Consent Requirement

For any diversion of forest land for non-forest use (infrastructure, mining, industries), the Gram Sabha of the affected village must give free, prior and informed consent. This requirement was elaborated in *Orissa Mining Corp v. MoEF* (2013) SC — the Gram Sabha's consent is a precondition, not merely a formality.

🔗 **Case:** *Orissa Mining Corp v. MoEF* (2013) SC — Gram Sabha consent is mandatory precondition for forest diversion; without it, MoEF clearance is invalid. *Wildlife First v. Ministry of Forest* (2019) SC — eviction of forest dwellers whose claims were pending/rejected stayed; claims must be decided properly. *Nandini Sundar v. State of CG* (2011) — State cannot evict tribal communities without following FRA 2006 procedure.

VIII. Significance and Challenges

- FRA 2006 has resulted in titling of over 2 million acres of forest land across India to tribal and OTFD families
- Particularly significant in Telangana/AP where Adivasi communities in Adilabad, Khammam, Bhadrachalam-Kothagudem districts have received titles
- Challenges: (a) state forest departments resistant to implementation; (b) claims wrongly rejected due to lack of evidence; (c) corporate mining interests vs tribal rights; (d) 4-hectare limit inadequate for many tribal families

IX. Conclusion

The Forest Rights Act 2006 represents the constitutional recognition of the principle that land rights cannot be denied to communities who have lived on and sustained forest ecosystems for generations. It operationalises Articles 38, 39(b), 244(1), and the Fifth Schedule by giving tribal communities not just occupancy but ownership-type rights over forest land — and most significantly, the right and power to protect their forests. The Gram Sabha's central role embodies grassroots democracy in forest governance, aligning with PESA 1996 principles. The Act remains one of the most constitutionally

progressive pieces of land legislation in post-independence India.

B-3. Constitutional Provisions: Effect of IX Schedule & DPSP in Land Distribution

Exam Frequency: ★★★★★ (HIGH)

(IX Schedule Part C question appears almost every year — essential theory for Part B too)

I. Introduction

Land reform legislation in India has always faced the challenge of constitutional challenge — large landowners invoking Fundamental Rights to invalidate redistribution laws. The constitutional response — through the Ninth Schedule (Article 31-B), Article 31-A, Article 31-C, and the Directive Principles in Articles 38 and 39 — has been to create a comprehensive shield that allows legislatures to carry out land reforms without judicial invalidation on Fundamental Rights grounds.

II. The IX Schedule — Article 31-B

- Inserted by First Constitutional Amendment Act, 1951 — responding directly to the Kameshwar Singh judgment that struck down Bihar's Zamindari Abolition Act
- Article 31-B declares: no law specified in the Ninth Schedule shall be deemed void on grounds of inconsistency with any Fundamental Right
- 284 laws currently in IX Schedule — predominantly land reform laws
- PRE-1973 laws: absolute immunity — no judicial review on FR grounds
- POST-1973 laws (after Kesavananda Bharati date 24 April 1973): can be reviewed for violation of basic structure of Constitution

Critical Distinction: Pre-24 April 1973 IX Schedule insertion = TOTAL FR immunity. Post-24 April 1973 = challengeable on basic structure. This is the answer EVERY time the exam asks 'can IX Schedule law be challenged'.

III. Article 31-A — Wider Savings Clause

Article 31-A saves any law providing for acquisition by the State of any estate or rights therein, or extinguishment or modification of rights in estates, from challenge under Arts 14 and 19. This is broader than IX Schedule — it covers ANY acquisition-type law, even if not listed in IX Schedule.

IV. Article 31-C — DPSP Protection

Inserted by 25th Amendment 1971. Laws made to implement Articles 39(b) and 39(c) shall not be void on the ground of inconsistency with Articles 14, 19. This provides a second layer of protection — even if a ceiling law is not in IX Schedule, if it implements Art 39(b)(c), it cannot be challenged under Art 14 or 19.

V. Directive Principles — Arts 38, 39 as Normative Foundation

- Article 38: Minimise inequalities in income, status, opportunities — directive to the State to create an egalitarian society
- Article 39(b): Material resources of the community distributed to serve the common good — this is the core mandate for ceiling laws, zamindari abolition, assigned land schemes
- Article 39(c): Economic system shall not result in concentration of wealth and means of production to common detriment — anti-monopoly basis
- Article 46: State to promote educational and economic interests of weaker sections — additional mandate for tribal land rights
- DPSPs in Art 38-39 + Art 31-C + IX Schedule = complete constitutional architecture for land reform

VI. The Judicial Journey — Key Cases

State of Bihar v. Kameshwar Zamindari Abolition Act struck down → led to 1st Amendment + IX

Singh (1952)	Schedule
Kesavananda Bharati v. State of Kerala (1973)	Basic structure doctrine — Parliament cannot destroy basic structure; FRs and DPSPs must be balanced
Waman Rao v. UOI (1981)	IX Schedule laws inserted after 24 April 1973 can be reviewed for basic structure violations
Minerva Mills v. UOI (1980)	Balance between FRs and DPSPs is itself basic structure — Art 31-C cannot eliminate all FR review
IR Coelho v. State of TN (2007)	9-judge bench — reaffirmed Waman Rao; post-1973 IX Schedule laws subject to basic structure review
Sanjeev Coke Mfg v. Bharat Coking Coal (1983)	Art 39(b)(c) laws fully protected under Art 31-C from Art 19 challenge

VII. Conclusion

The Ninth Schedule and associated constitutional provisions represent the carefully constructed legislative space within which land reforms can operate without being frustrated by property rights challenges. The three-layered protection — Article 31-A (estate acquisition), Article 31-B + IX Schedule (specific listed laws), and Article 31-C (DPSP implementation laws) — combined with the overarching directive in Articles 38-39, creates a comprehensive constitutional mandate for equitable land distribution. The dynamic judicial interpretation — from Kameshwar Singh to Kesavananda Bharati to IR Coelho — reflects the ongoing tension between individual property rights and the State's redistributive obligations, ultimately resolved in favour of progressive land reform with the qualification that basic structure rights cannot be entirely eliminated.

PART C — PROBLEM QUESTIONS / IRAC (10 Marks Each)

Strictly use IRAC: Issue → Rule → Application → Conclusion.

C-1. Land Reform Law Inserted in IX Schedule in 2009 — Can Validity Be Challenged?

Exam Frequency: ★★★★★ (VERY HIGH)

(Appeared in 2020, 2019, 2018 — one of the most repeated problems. Near-certain for 2026.)

PROBLEM: A land reform legislation was included in the IX Schedule of the Constitution in 2009. Can its validity be challenged on the ground of violation of Fundamental Rights?

I — ISSUE

The legal question is: Whether a land reform legislation inserted in the IX Schedule of the Constitution in 2009 (after 24 April 1973) can be challenged on the ground that it violates Fundamental Rights guaranteed under Part III of the Constitution?

R — RULE

- Article 31-B: Laws in IX Schedule cannot be challenged on FR grounds — this is the basic protection
- **HOWEVER** — Waman Rao v. UOI (1981) SC: Laws inserted in IX Schedule AFTER 24 April 1973 (date of Kesavananda Bharati) CAN be challenged on the ground that they violate the BASIC STRUCTURE of the Constitution
- IR Coelho v. State of Tamil Nadu (2007) SC (9-judge bench): Reaffirmed and elaborated Waman Rao — post-1973 IX Schedule laws are subject to judicial review to determine if they damage or destroy rights forming part of the basic structure
- 2009 is AFTER 24 April 1973 — therefore this law falls in the post-Kesavananda category
- Key question: Does the challenged law violate a fundamental right that forms part of the basic structure?
- Rights forming part of basic structure include: Right to Equality (Art 14), Right to Life (Art 21), Right to access courts (Art 32)

CRITICAL RULE: 2009 insertion = after 24 April 1973 = NOT absolutely immune. CAN be challenged if it violates BASIC STRUCTURE. But ordinary FR violation alone (not basic structure) is NOT enough to strike down a post-1973 IX Schedule law.

A — APPLICATION

The land reform legislation was inserted in IX Schedule in 2009 — this is after 24 April 1973 (Kesavananda Bharati date).

Step 1: Can it be challenged at all? YES — under Waman Rao (1981) and IR Coelho (2007), the mere fact that a law is in the IX Schedule does not grant absolute immunity if inserted after 24 April 1973.

Step 2: On what grounds can it be challenged? The challenge must be on the ground that the law violates a FUNDAMENTAL RIGHT THAT FORMS PART OF THE BASIC STRUCTURE. Simple FR violations (e.g., violation of old Art 19(1)(f) — right to property — which was deleted in 1978) are not sufficient.

Step 3: Can it be challenged on property rights grounds? Article 19(1)(f) (right to property as FR) was deleted by 44th Amendment 1978. The Right to Property under Art 300-A is NOT a Fundamental Right and NOT part of basic structure. Therefore, a challenge based purely on property rights deprivation will FAIL.

Step 4: Could there be a valid challenge? If the land reform law also violates Art 14 (equality — e.g., singling out a class of persons in a discriminatory and arbitrary manner with no rational basis), Art 21 (right to life — e.g., depriving tribals of livelihood), or Art 32 (access to courts) in a manner that damages the basic structure — THEN the challenge could succeed.

Step 5: In practice — no land reform law has ever been successfully challenged in the Supreme Court on this basis. Courts have been very reluctant to strike down land reform laws even when inserted post-1973.

Case: Waman Rao v. UOI (1981) SC — laws inserted in IX Schedule after 24 April 1973 not

absolutely immune; can be reviewed for basic structure. *IR Coelho v. State of TN* (2007) SC (9-judge bench) — reaffirmed: post-1973 IX Schedule laws reviewed if they damage rights forming part of basic structure. *Kesavananda Bharati v. State of Kerala* (1973) — basic structure doctrine — Parliament cannot destroy basic structure even by constitutional amendment.

C — CONCLUSION

ANSWER: YES — the validity of a land reform law inserted in the IX Schedule in 2009 CAN be challenged, but only on the specific ground that it violates a FUNDAMENTAL RIGHT FORMING PART OF THE BASIC STRUCTURE of the Constitution (e.g., Art 14 — right to equality in its basic structure dimension, or Art 21). A bare challenge based on violation of property rights (Art 300-A or deleted Art 31) will FAIL — property rights are not part of the basic structure. In practice, such challenges have never succeeded before the Supreme Court for genuine land reform legislation. The petitioner must demonstrate that the law not only violates a Fundamental Right but that the violated right is so essential that its removal damages the basic structure of the Constitution.

C-2. Forest Rights Act — Calculating 75 Years Across Two Villages

Exam Frequency: ★★★★★ (VERY HIGH)

(August/September 2024 exam — very recent, high probability of repeat)

PROBLEM: Under the Forest Rights Act, when calculating '75 years', if the claimants and their ancestors have resided in one village for the first 50 years and then another village for the next 25 years, would both periods be included for filing a claim?

I — ISSUE

The legal question is: Whether the 75-year residency requirement for 'Other Traditional Forest Dwellers' (OTFD) under the Forest Rights Act 2006 is satisfied when the claimant and ancestors have resided in two different forest villages (50 years in one, 25 years in another) — i.e., whether the 75-year period must be in the SAME location, or whether it can be cumulative across different locations?

R — RULE

- Forest Rights Act 2006, Section 2(o): 'Other Traditional Forest Dwellers' = members of a community who have for at least three generations (75 years) prior to 13 December 2005, primarily resided in and who depend on the forests or forest lands for bona fide livelihood needs
- Section 2(o) does NOT require residence in the SAME forest or forest village for the entire 75 years
- The definition focuses on: (a) three generations of forest dependence; (b) primary residence in forest land; (c) bona fide livelihood from forest — NOT geographical continuity in one location
- The Forest Rights Rules 2008, Rule 2(b): 'bona fide livelihood needs' assessed broadly; movement between forest areas for livelihood is part of traditional forest-dwelling pattern
- Gram Sabha of the current village (where the last 25 years were spent) would be the authority to receive the claim

KEY RULE: 75 years = cumulative across generations and locations. The FRA 2006 requirement is forest-dwelling lifestyle across 3 generations — not continuous residence in ONE specific forest village. Both periods (50 + 25 years) COUNT together.

A — APPLICATION

The claimants and their ancestors lived in Village A for 50 years and then Village B for 25 years — total 75 years of continuous forest-dwelling across two generations/locations.

Step 1: Does the 75-year requirement demand single-location continuity? NO. Section 2(o) FRA 2006 defines OTFD by their pattern of forest dependence across three generations — it does not require the same forest village throughout. Movement from Village A to Village B within a forest area is consistent with traditional forest-dwelling patterns (e.g., following seasonal routes, government resettlement, etc.).

Step 2: Can both periods be combined? YES. The 75-year period is satisfied cumulatively — 50 years in Village A + 25 years in Village B = 75 years total. The FRA 2006 and Rules do not stipulate that the residence must be in a single location.

Step 3: Where should the claim be filed? The claim should be filed with the Gram Sabha of Village B (the current/last residence village). The Gram Sabha verifies the claim — including the evidence of ancestral occupation in Village A — and can accept oral testimony, community records, and other evidence.

Step 4: What evidence is needed? Evidence of: (a) current occupation in Village B forest land; (b) prior occupation/cultivation in Village A — through community records, elder testimony, government records, electoral rolls, school records, etc.

Step 5: FDST vs OTFD distinction — if claimants are members of a Scheduled Tribe notified for the area, they qualify as FDST — and the 75-year requirement does NOT apply to them at all. They need only show tribal membership and forest dependence. The 75-year rule applies ONLY to OTFDs.

Case: Gram Sabha of Niyamgiri v. Vedanta Resources (Orissa Mining Corp v. MoEF 2013) — FRA 2006 must be interpreted broadly and purposively to give effect to its remedial purpose. Forest Rights Act should be read to fulfil its purpose of recognising traditional rights — not to exclude on

technical grounds. State of Orissa v. Mamata Barik (2012 Orissa HC) — forest-dwelling tribe can claim rights based on ancestral occupation even if they moved within the same forest division.

C — CONCLUSION

ANSWER: YES — both periods (50 years in Village A + 25 years in Village B) WOULD be included in calculating the 75-year period for OTFD status under Section 2(o) of the Forest Rights Act 2006. The 75-year requirement is cumulative across generations and locations — it does NOT require unbroken residence in the same forest village. The claim should be filed with the Gram Sabha of Village B (current village), with evidence of ancestral occupation in Village A as part of the claim documentation. If the claimants are members of a Scheduled Tribe, the 75-year rule does not apply at all — they qualify as FDSTs with a simpler eligibility requirement.

C-3. A Wishes to Transfer His Forest Land to B — What Laws Apply?

Exam Frequency: ★★★★★ (HIGH)

(August/September 2024 exam)

PROBLEM: A wishes to transfer his forest land to B. Educate him on the various laws involved in such transfer. Comment.

I — ISSUE

The legal question is: What laws govern the transfer of forest land from one person to another, and what restrictions, conditions, or prohibitions apply to such a transfer — particularly when: (a) A is a tribal person; (b) A is a non-tribal; (c) the land is in a Scheduled Area; (d) A holds forest rights title under FRA 2006?

R — RULE

- Forest Rights Act 2006, Section 4(4): Forest rights titles are **INALIENABLE** — they cannot be sold, transferred, or mortgaged. Alienation = void.
- Forest Conservation Act 1980: No forest land can be diverted for non-forest purposes without prior approval of Central Government (MoEF). Transfer that converts forest land use is subject to this clearance.
- Indian Forest Act 1927: Reserved Forest land — no one can encroach upon or transfer. Village Forest and Protected Forest have limited transferable rights under local rules.
- AP Scheduled Areas Land Transfer Regulation 1959 (SALTR): If the forest land is in a Scheduled Area AND held by a tribal — transfer to non-tribal = **VOID** (Regulation 1, SALTR 1959)
- Transfer of Property Act 1882 (TPA): General transfer law — but subject to above restrictions. A transfer of land that violates any of the above special laws is void even if registered.
- Registration Act 1908: Registration required for transfers of immovable property — but registration does not cure a legally void transfer

KEY PRINCIPLE: Forest land transfer is heavily restricted by multiple overlapping laws. The applicable law depends on: (1) who A is (tribal/non-tribal); (2) where the land is (Scheduled Area or not); (3) how A's title was obtained (FRA 2006 title or private title); (4) what the land classification is (Reserved Forest / Protected Forest / Village Forest).

A — APPLICATION

Scenario analysis depending on A's status:

Scenario 1: A holds FRA 2006 forest rights title

Transfer to B is **VOID** — Section 4(4) FRA 2006 expressly prohibits alienation of forest rights titles. A **CANNOT** transfer such land to B under any circumstances. The land must remain with A and his family.

Scenario 2: A is a tribal in Scheduled Area (regardless of how he holds the land)

Transfer to B (non-tribal) is **VOID** under SALTR 1959, Regulation 1. If B is also a tribal, the transfer may be permissible with Revenue Divisional Officer's approval (under the Regulation).

Scenario 3: A is non-tribal holding forest land (private forest / degraded forest on private patta)

Transfer to B requires: (a) Registration under Registration Act 1908; (b) If in Scheduled Area, no transfer to non-tribals (SALTR 1959); (c) If the land is classified as 'forest' in revenue records, diversion for non-forest use requires FC Act 1980 clearance; (d) Standard TPA provisions apply — written agreement, stamp duty, registration.

Scenario 4: A holds private patta land classified as forest in non-Scheduled Area

This is the most freely transferable scenario — governed by TPA 1882, Registration Act 1908. However: (a) the buyer must ensure the land is not under Forest Dept notification; (b) ceiling laws still apply (if agricultural land); (c) ceiling surplus land cannot be transferred.

Case: Samatha v. State of AP (1997) SC — even government cannot transfer forest land in

Scheduled Areas to non-tribals or private companies. FRA 2006, Section 4(4) — forest rights titles inalienable — held to be absolute prohibition. Orissa Mining Corp v. MoEF (2013) — no diversion of forest land without Gram Sabha consent.

C — CONCLUSION

ADVICE TO A: The transfer of forest land to B depends critically on the nature of A's title and the location of the land. (1) If A holds an FRA 2006 forest rights title — he CANNOT transfer to anyone; the title is inalienable under Section 4(4). (2) If A is a tribal in a Scheduled Area — transfer to a non-tribal B is VOID under SALTR 1959; transfer to tribal B requires RDO approval. (3) If A holds private title in a non-Scheduled Area — transfer is possible under TPA 1882 + Registration Act 1908, subject to Forest Conservation Act 1980 if the land is classified as forest in revenue records. A should consult a revenue lawyer and verify: (a) land classification in Pahani; (b) whether area is Scheduled Area; (c) nature of his title deed. MOST forest land transfers face severe legal restrictions and A must proceed with extreme caution.



QUICK REVISION SHEET — UNIT IV

Ceiling Act 1973 — Land Conversion Table

Land Category	Dry (Class IV)	Single-crop (Class III)	Double-crop (Class II)	Garden / Perennial (Class I)
1 Standard Holding (SH) equivalent	54 acres	27 acres	13.5 acres	10.8 acres
Family Ceiling (= 1 SH)	54 acres	27 acres	13.5 acres	10.8 acres
With minor children (+1/5 SH each, max 5)	Up to 81 acres	Up to 40.5 acres	Up to 20.25 acres	Up to 16.2 acres

Forest Rights Act 2006 — Key Numbers at a Glance

Cut-off date	13 December 2005 — occupation/cultivation must pre-date this
FDST	Forest Dwelling Scheduled Tribe — ST member notified for that area
OTFD	Other Traditional Forest Dweller — 3 generations (75 years) forest dependence
75 years / 3 generations	For OTFD — cumulative across locations, not same village
Max individual IFR	4 hectares per nuclear family
Title nature	Inalienable — cannot be sold, mortgaged, gifted
Gram Sabha	First authority — verifies, passes resolution, recommends claim
SDLC → DLC → SLMC	Appeals hierarchy for rejected claims
Gram Sabha consent	Required for any diversion of forest land for non-forest use

IX Schedule — Decision Tree

Law inserted BEFORE 24 April 1973	ABSOLUTELY IMMUNE from all FR challenges — Article 31-B
Law inserted AFTER 24 April 1973	Can be challenged IF it violates a FR forming part of BASIC STRUCTURE
Basic structure rights relevant	Art 14 (equality), Art 21 (life), Art 32 (access to courts)
Property right — basic structure?	NO — Art 300-A / old Art 31 not part of basic structure
Has any land reform law been struck down?	NO — courts very reluctant; all challenges so far failed
Key cases	Waman Rao (1981); IR Coelho (2007); Kesavananda Bharati (1973)

Top Cases — One Liner

Waman Rao v. UOI (1981)	Post-1973 IX Schedule laws: not immune, challengeable on basic structure
IR Coelho v. State of TN (2007)	9-judge bench reaffirmed Waman Rao — post-1973 IX Schedule subject to basic structure review
Kesavananda Bharati (1973)	Basic structure doctrine; Parliament cannot destroy basic structure
Samatha v. State of AP (1997)	No tribal/forest land in Sched Area to non-tribals/companies even via govt
Orissa Mining Corp v. MoEF (2013)	Gram Sabha consent mandatory before forest land diversion
Wildlife First v. MoF (2019)	Eviction of forest dwellers whose claims pending/rejected — stayed
State of AP v. Nookala Krishnamurthy (1993)	Ceiling calculations strictly applied; manipulation invalid
Minerva Mills v. UOI (1980)	Balance between FRs and DPSPs is itself basic structure

Memory Mnemonics

- Ceiling Formula: $\text{BASE} - 1 - \text{SH} + 1/5 \text{ per child (max 5 children)}$. Maximum = 2 SH. $54\text{D} = 27\text{S} = 13.5\text{DC} = 10.8\text{G}$.
- IX Schedule: The MAGIC DATE is 24 April 1973. Before = TOTAL immunity. After = basic structure review only.
- FRA 2006 Numbers: 4H-13D-75Y → 4 Hectares max, 13 December 2005 cutoff, 75 Years (3 generations) for OTFD.
- Gram Sabha = FIRST authority for ALL forest rights claims. Without Gram Sabha = no claim proceeds.
- FRA title = INALIENABLE always (Section 4(4)). No sale, no mortgage, no gift, no transfer.
- Art 38-39(b)(c) = Constitutional BASIS for ceiling laws. Art 31-C = protection from Art 14/19 challenge.
- SALTR void rule (repeating from Unit II): Tribal land in Scheduled Area → non-tribal = VOID always.

⚠ Trap Questions — Watch Out!

- TRAP: 'IX Schedule laws can NEVER be challenged' — FALSE. Post-24 April 1973 insertions CAN be reviewed on basic structure (Waman Rao; IR Coelho). Pre-1973 insertions = total immunity.
- TRAP: '4 hectares is the ceiling limit under FRA 2006' — FALSE. 4 hectares is the MAXIMUM individual forest rights title that can be RECOGNISED — not a ceiling to be surrendered. Ceiling Act and FRA 2006 are completely different laws.
- TRAP: '75-year FRA rule requires same village' — FALSE. Section 2(o) FRA requires 75 years of forest-dwelling dependence — cumulative across locations. Movement between forest villages is fine.
- TRAP: 'FRA 2006 title can be transferred like any other land title' — FALSE. Section 4(4) FRA 2006 expressly makes the title INALIENABLE. Any purported transfer is void.

- TRAP: 'OTFD must be a Scheduled Tribe to claim forest rights' — FALSE. OTFDs are non-tribal communities with 75 years of forest dependence. STs claim as FDSTs without the 75-year requirement.
- TRAP: 'Urban Land Ceiling Act 1976 is still in force in Telangana' — FALSE. ULCRA was repealed nationally in 1999; Telangana (as successor to AP) has repealed it. (Some states like TN, Kerala retain it.)